



Procedure No: EXP202406697 (PS/00213/2024)

RESOLUTION OF THE SANCTIONING PROCEDURE

BACKGROUND

FIRST: On 02/01/24, Ms. A.A.A. (hereinafter, the claimant) filed a complaint with the Spanish Agency for Data Protection.

The complaint is directed against the entity, RETSINNAL GROUP, S.L.U. with CIF: Foreign Document N0267247E, owner of the website www.inmo-master.com (hereinafter, the defendant), for the alleged violation of Law 34/2002, of July 11, on Information Society Services and Electronic Commerce (LSSI). In her complaint, she states, among other issues, that the management of cookies on their website does not comply with the provisions of current regulations.

SECOND: On 23/02/24, in accordance with the provisions of Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (LOPDGDD), this Agency forwarded the complaint to the defendant for analysis and to report back within one month on the matters raised in the complaint.

The forwarding was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP).

According to a certificate from the State Postal and Telegraph Society, the notice sent to the defendant on 23/02/24 via the postal service to the address ***ADDRESS.1 was returned to sender on 13/03/24 with the notation "Excess."

In a query made to the OEPM service of the Spanish Patent and Trademark Office, an additional postal address for the defendant was obtained, ***ADDRESS.2, to which a copy of the forwarding notice was sent again on 21/03/24, which was returned to sender with the annotation "Not collected from the postal service."

THIRD: On 02/04/24, in accordance with Article 65 of the LOPDGDD, the complaint filed by the claimant was admitted for processing.

FOURTH: The General Subdirectorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the investigative powers granted to control authorities in Article 58.1 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of 27/04/16, on the Protection of Natural Persons with regard to the Processing of Personal Data and on the Free Movement of such Data (GDPR), and in accordance with the provisions established in Title VII, Chapter I, Section two, of the LOPDGDD, being aware of the following characteristics regarding the "Cookie Policy" of the website www.inmo-master.com:

a- Regarding the use of cookies before the user gives their consent:

Upon entering the website for the first time, after clearing the terminal equipment of browsing history and cookies, without accepting new cookies or taking any action on the website, it has been verified that the following cookies are used, all of them from third parties:

Technical nature cookies:

cookies

Domain

Description

__cf_bm

.calendly.com

This cookie is used to distinguish between humans and bots.

__cfuid

.calendly.com

Used to identify trustworthy web traffic.

Performance cookies: Allow quantifying the number of visits and traffic sources to evaluate the performance of the website.

cookies

Domain

Description

mMás

m.stripe.com

Used for the performance and optimization of payment processing services, facilitating caching so that pages load faster.

Preference, personalization, or functionality cookies: These are the cookies that allow remembering information so that the user can access the service with certain characteristics that may differentiate their experience from that of other users.

cookies

Domain

Description

_cfuvid

.calendly.com

This cookie is used to track users across sessions to optimize the user experience by providing personalized services based on their preferences.

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b.- Regarding the cookie information banner on the first layer:

Upon entering the website for the first time, after clearing the terminal device of browsing history and cookies and without taking any action on the webpage, it is verified that NO type of cookie information banner appears. There is also no possibility to give consent or reject the installation of cookies or to manage cookies in a granular manner.

3rd.- Regarding the information provided in the "Cookie Policy":

In the verification conducted on the website, it has been detected that there is no document regarding the "Cookie Policy." There is only a small amount of information about cookies on the "Terms and Conditions" page, the link to which is located at the bottom of the main page, <https://inmo-master.com/terminos-y-condiciones>, in the section "Data Processing and Use of Cookies," which states the following:

(...) Furthermore, THE TRAINER informs that by visiting its Platform (without carrying out any registration process), no personal data identifying a user is automatically recorded; however, there is certain non-personal and non-identifiable information collected during the session in real-time through devices called "cookies" that allow us to obtain statistical information about the use of the Platform in order to make improvements. Every User must accept, reject, or configure cookies to navigate through the Platform via the pop-up banner upon entering it. For more information, please consult our cookie policy (...).

4th.- Regarding the possibility of modifying the consent given regarding cookies at any time during web navigation.

In addition to the fact that there is no possibility to give or not give consent for the use of cookies that are not of a technical nature, there is also no possibility to access a cookie control panel to manage consent regarding the use of cookies.

FIFTH: On 13/06/24, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the claimed party in accordance with the provisions of Articles 63 and 64 of the LPACAP, for the alleged violation of Article 22.2 of the LSSI, classified as "minor" in Article 38.4 g) of the aforementioned regulation.

In the opening agreement, it was determined that the sanction that could correspond, considering the existing evidence at that time and without prejudice to what may result from the instruction, would amount to a total of 10,000 (ten thousand euros).

The notification of the initiation of the file was carried out in accordance with the rules established in the LPACAP. According to a certificate from the Postal Service, the initiation document sent to the address at ***ADDRESS.2 was returned to the sender on 02/07/24, with the annotation "Not collected from the postal service."

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On 26/07/24, the notification of the initiation agreement was made through an announcement in the Single Edict Board of the Official State Gazette, in accordance with Article 44 LPACAP. In this announcement, the claimed party is informed about the possibility of obtaining a copy of the opening agreement.

No written allegations regarding the initiation of the file have been received by this Agency.

SIXTH: The aforementioned initiation agreement was notified in accordance with the rules established in the LPACAP, and after the period granted for the formulation of allegations has elapsed, it has been confirmed that no allegations have been received regarding the initiation of the file in this Agency.

Article 64.2.f) of the LPACAP - a provision of which the claimed party was informed in the opening agreement of the procedure - establishes that if no allegations are made within the stipulated period regarding the content of the initiation agreement, when it contains a precise pronouncement regarding the responsibility attributed, it may be considered a proposal for resolution. In this case, the initiation agreement of the sanctioning file determined the facts in which the accusation was specified, the infringement of the LSSI attributed to the claimed party, and the sanction that could be imposed.

Therefore, considering that the claimed party has not made allegations against the initiation agreement of the file and in accordance with the provisions of Article 64.2.f) of the LPACAP, the aforementioned initiation agreement is considered in this case as a proposal for resolution.

In light of all that has been acted upon, the Spanish Agency for Data Protection considers the following facts to be proven in this procedure,

PROVEN FACTS

First: According to the "Terms and Conditions" section of the website www.inmo-master.com, (<https://inmo-master.com/terminos-y-condiciones/>), the entity responsible for it is Retsinnal Group SLU.

Second: It has been verified that upon entering the website for the first time, after clearing the terminal device of browsing history and cookies, without accepting new cookies or taking any action on the website www.inmo-master.com, it has been confirmed that the following cookies are used, all of them from third parties:

Technical cookies:

Performance cookies:

Preference cookies:

__cf_bm from .calendly.com

__cfuid from .calendly.com

mMore from m.stripe.com

_cfuid from .calendly.com

Third: It is confirmed that upon entering the website for the first time, after clearing the terminal device of browsing history and cookies and without taking any action on the webpage, NO type of cookie information banner appears.

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There is also no possibility to give consent or refuse the installation of cookies.

Fourth: It is noted that the website does not have a document on "Cookie Policy."

There is only a small amount of information about cookies on the "Terms and Conditions" page, the link to which is located at the bottom of the main page,

<https://inmo-master.com/terminos-y-condiciones>, in the section "Data Processing and Use of Cookies," which informs as follows:

(...) On the other hand, THE TRAINER informs that by visiting its Platform (without carrying out any registration process), no personal data identifying a user is automatically recorded; however, there is certain non-personal and non-identifiable information with a specific user that is collected during the

session in real-time through devices called "cookies," which allow us to obtain statistical information about the use of the Platform in order to make improvements. Every User must accept, reject, or configure the cookies to navigate through the Platform via the pop-up banner upon entering it. For more information, please consult our cookie policy (...).

LEGAL GROUNDS

I

Competence.

In accordance with the provisions of Article 43.1 of the LSSI and the provisions of Articles 47, 48.1, 64.2, and 68.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

The fourth additional provision "Procedure in relation to the competencies attributed to the Spanish Agency for Data Protection by other laws" establishes that: "The provisions in Title VIII and its development regulations shall apply to the procedures that the Spanish Agency for Data Protection must process in the exercise of the competencies attributed to it by other laws."

II

Established Non-compliances

a).- installation of cookies on the terminal equipment prior to the user's consent:

Article 22.2 of the LSSI establishes that users must be provided with clear and complete information about the use of data storage and retrieval devices and, in particular, about the purposes of data processing.

This information must be provided in accordance with the provisions of the GDPR.

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Therefore, when the use of a cookie involves processing that allows for the identification of the user, the data controllers must ensure compliance with the requirements established by data protection regulations.

However, it is necessary to point out that those cookies necessary for the intercommunication of terminals and the network, as well as those that provide a service expressly requested by the user, would be exempt from compliance with the obligations established in Article 22.2 of the LSSI.

In this regard, the GT29, in its Opinion 4/2012, interpreted that among the exempted cookies would be user input cookies (those used to fill out forms or for managing a shopping cart); authentication or user identification cookies (session cookies); user security cookies (those used to detect erroneous and repeated attempts to connect to a website); multimedia player session cookies; session cookies for load balancing; user interface customization cookies; and some plug-in cookies for exchanging social content.

These cookies would be excluded from the scope of Article 22.2 of the LSSI, and therefore, it would not be necessary to inform or obtain consent for their use. Conversely, it will be necessary to inform and obtain the prior consent of the user before using any other type of cookies, whether first-party or third-party, session or persistent.

In this case, during the check conducted on the website in question, it was detected that upon first accessing it, after clearing the terminal equipment of browsing history and cookies, without accepting new cookies or taking any action on it, the following third-party cookies of a non-technical nature were used: the performance cookie: "mMás" whose provider is "m.stripe.com" and the preferences cookie: "_cfuvid" whose provider is ".calendly.com".

b).- Regarding the cookie information banner present on the first layer (main page):

The cookie banner on the first layer must include information regarding the identification of the website

controller, in case their identifying data is not found in other sections of the page or their identity cannot be clearly inferred from the site itself. It must also include a generic identification of the purposes of the cookies that will be used and whether they are first-party or also third-party, without the need to identify them in this first layer.

Additionally, it must include generic information about the type of data that will be collected and used in case user profiles are created, and it must include information on how the user can accept, configure, and reject the use of cookies, with a warning, if applicable, that if a certain action is taken, it will be understood that the user accepts the use of cookies.

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Apart from the generic information about cookies, this banner must contain a clearly visible link directing to a second layer of information regarding the use of cookies. This same link may be used to lead the user to the cookie settings panel, provided that access to the settings panel is direct, meaning that the user does not have to navigate within the second layer to locate it.

In the case at hand, it has been verified that there is no type of banner informing the user about cookies when accessing the website for the first time.

c).- Regarding consent for the installation of cookies on the terminal equipment:

For the use of non-exempt cookies, it is necessary to obtain the user's consent explicitly. This consent can be obtained by clicking "accept" or inferring it from an unequivocal action taken by the user that indicates that consent has been given unequivocally. Therefore, mere inactivity of the user, scrolling, or navigating the website will not be considered a clear affirmative action under any circumstances and will not imply the granting of consent by itself. Similarly, accessing the second layer if the information is presented in layers, as well as the necessary navigation for the user to manage their preferences regarding cookies in the control panel, is also not considered an active behavior from which acceptance of cookies can be derived.

The existence of "Cookie Walls" is also not permitted, meaning pop-up windows that block content and access to the website, forcing the user to accept the use of cookies in order to access the page and continue browsing without offering the user any alternative that allows them to freely manage their preferences regarding the use of cookies.

If the option is to direct to a second layer or cookie control panel, the link must take the user directly to that settings panel. To facilitate selection, in the panel, in addition to a granular cookie management system, two more buttons may be implemented: one to accept all cookies and another to reject them all. If the user saves their choice without having selected any cookies, it will be understood that they have rejected all cookies. In relation to this second possibility, pre-checked boxes favoring the acceptance of cookies are not admissible under any circumstances.

If for cookie settings, the website refers to the settings of the browser installed on the terminal equipment, this option could be considered complementary to obtaining consent, but not as the only mechanism. Therefore, if the publisher opts for this option, they must also provide, in any case, a mechanism that allows rejecting the use of cookies and/or doing so granularly.

On the other hand, the withdrawal of previously granted consent by the user must be possible at any time. To this end, the publisher must offer a mechanism that allows the consent to be withdrawn easily at any time. It will be considered that this ease exists, for example, when the user

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have easy and permanent access to the cookie management or configuration system.

If the editor's cookie management or configuration system does not allow for the prevention of the use

of third-party cookies once accepted by the user, information will be provided about the tools offered by the browser and third parties, with a warning that if the user accepts third-party cookies and later wishes to delete them, they must do so from their own browser or the system enabled by third parties for that purpose.

In the case at hand, it has been verified that there is no possibility to grant consent or reject the installation of cookies or to manage cookies in a granular manner.

d).- Regarding the information provided in the second layer (cookie policy):

There must be a second layer on the website "Cookie Policy" where more detailed information is provided about the characteristics of the cookies, including information about the definition and general function of cookies (what cookies are); about the type of cookies used and their purpose (what types of cookies are used on the website); the identification of who uses the cookies, that is, whether the information obtained by the cookies is processed only by the editor and/or also by third parties with identification of the latter; the retention period of the cookies on the terminal equipment; and if applicable, information about data transfers to third countries and the profiling that involves automated decision-making.

In the case at hand, it has been verified that there is no specific page (Cookie Policy) that informs the user about the cookies used on the website.

e).- Regarding the possibility of withdrawing consent for the use of cookies once granted.

Users must be able to withdraw the previously granted consent at any time. To this end, the editor must ensure that it provides information to users in its cookie policy on how they can withdraw consent. The user must be able to revoke consent easily. The system offered to withdraw consent must be as easy as the one used when consent was granted. It will be considered that such ease exists, for example, when the user has easy and permanent access to the cookie management or configuration system.

In this case, since there is no possibility to grant or deny consent, there is also no possibility to modify it when the user wishes.

III

Classification of the infringement committed

From the non-compliances detected in the cookie policy on the website www.inmo-master.com, that is: the use of third-party cookies that are not from

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technical nature without the prior consent of the user; the absence of an initial banner providing information about cookies; the impossibility of giving consent or rejecting the installation of cookies that are not of a technical nature or doing so in a granular manner, and the impossibility of modifying consent at any time during web browsing when the user wishes to do so.

All of this constitutes, on the part of the accused, a violation of Article 22.2 of the LSSI, which states the following:

“Service providers may use data storage and retrieval devices on the terminal equipment of the recipients, provided that they have given their consent after being provided with clear and complete information about their use, in particular, regarding the purposes of data processing, in accordance with the provisions of Organic Law 15/1999, of December 13, on the protection of personal data. When technically possible and effective, the recipient's consent to accept data processing may be provided through the appropriate parameters of the browser or other applications.

The above shall not prevent the possible storage or technical access solely for the purpose of transmitting a communication over an electronic communications network or, to the extent that it is strictly necessary, for the provision of a service of the information society expressly requested by the recipient.”

IV.

Sanction

This infringement is classified as "minor" in Article 38.4 g) of the aforementioned Law, which considers as such: "Using data storage and retrieval devices when the information has not been provided or the consent of the service recipient has not been obtained in the terms required by Article 22.2.", and may be sanctioned with a fine of up to €30,000, in accordance with Article 39 of the aforementioned LSSI. The LSSI, in its Article 40, establishes the "graduation of the amount of sanctions", taking into account the following criteria: a) The existence of intent. b) The period of time during which the infringement has been committed. c) The recurrence of the commission of infringements of the same nature, when declared by a final resolution. d) The nature and amount of the damages caused. e) The benefits obtained from the infringement. f) The volume of billing affected by the committed infringement. g) Adherence to a code of conduct or an applicable advertising self-regulation system regarding the committed infringement, which complies with the provisions of Article 18 or in the eighth final provision and has been favorably reported by the competent authority or authorities.

Based on the evidence obtained, it is considered appropriate to graduate the sanction to be imposed according to the following aggravating criteria established by Article 40 of the LSSI:

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The existence of intent (section a). Expression that must be interpreted as equivalent to the degree of culpability in accordance with the Judgment of the National Court of 12/11/07 in Case No. 351/2006, corresponding to the reported entity the determination of a system that complies with the mandate of the LSSI, since, when a website is built, it is evident that one must be aware of the regulations regarding cookies and the fact that non-technical or necessary cookies are installed without consent is not possible unless the responsible party intentionally decides so.

In accordance with these criteria, it is deemed appropriate to impose, for the infringement of Article 22.2 of the LSSI, regarding the cookie policy carried out on the website owned by it, a fine of 10,000 euros (ten thousand euros).

Therefore, in light of the above, by the Director of the Spanish Agency for Data Protection,
RESOLVES:

FIRST: TO IMPOSE on the entity RETSINNAL GROUP, S.L.U. with CIF: Foreign Document L12889V, owner of the website www.inmo-master.com for the violation of Article 22.2 of the LSSI, classified as "minor" in Article 38.4 g) of the aforementioned regulation, a fine of 10,000 euros (ten thousand euros).

SECOND: NOTIFY this resolution to RETSINNAL GROUP, S.L.U.

THIRD: Warn the sanctioned party that the imposed fine must be paid once this resolution becomes enforceable, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, within the voluntary payment period indicated in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by depositing it into the restricted account No. ES00 0000 0000 0000 0000 0000, opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. or otherwise, collection will proceed in the executive period.

Upon receipt of the notification and once enforceable, if the date of enforceability falls between the 1st and the 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day. In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative route (Article 48.6 of the LOPDGDD), and in accordance with the provisions of Articles 112 and 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may optionally file a motion for reconsideration with the Director of the Spanish Agency for Data Protection within one

month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and in section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned legal text.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the firm resolution in the administrative route may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by writing to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronicaweb/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency does not become aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension terminated.

Mar España Martí

Director of the Spanish Agency for Data Protection.

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